Outlook

RE: Lofall v. West Linn, et al. - Removal and Trial Exhibits

From Dave Lewis <dlewis@cisoregon.org>
Date Wed 02/12/2025 4:13 PM
To Tyler Lofall <tyleralofall@gmail.com>
Cc Melanie Webb <MWebb@cisoregon.org>; Jon Stouffer <jstouffer@cisoregon.org>; kklein@westlinnoregon.gov <kklein@westlinnoregon.gov>; Lauren Nweze <lnweze@cisoregon.org>; Raechelle Ottosen <rottosen@cisoregon.org>

Mr. Lofall,

I have no objection to your Proposed Order or to your Motion to Dismiss. I agree to the waiver of costs and attorney fees in exchange for the dismissal.

However, please do not construe my lack of objection as an adoption of, admission of, or agreement with any of the statements, allegations, or assertions you make in your Proposed Order or Motion to Dismiss. In fact, I expressly deny your statements, allegations, and assertions. Also, my lack of objection should not be construed as a waiver of any defense in either the Clackamas County Circuit Court Case No. 22CV39627 lawsuit or the United States District Court for the District of Oregon Case No. 3:24-cv-00839-SB lawsuit.

CIS
Dave Lewis | Supervising Litigation Attorney
CIS Litigation | 15875 Boones Ferry Rd #1469 | Lake Oswego, OR 97035
503-763-3861 | 503-763-3900
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Salem Convention Center | In-Person & Virtual

From: Tyler Lofall <tyleralofall@gmail.com>
Sent: Tuesday, February 11, 2025 11:56 PM
To: Dave Lewis <dlewis@cisoregon.org>
Subject: Re: Lofall v. West Linn, et al. - Removal and Trial Exhibits

Mr. Dave.

Its funny how getting screwed over by some place then watching the video tape of your own attorney and judges screw you leaves you with a a huge distrust.... i told William in Feb and March.... Clackamas has done a lot of harm to my life.... alot... there is nothing about that place i dont see through and I resent it more than anything ive ever resented... and it all started with your clients and sometimes it makes me feel that way toward you ... ... apologies if you feel it .....but this isn't a career path for me... its not fun.. and i promise you its way harder than it is when you got nothing, and no one to ask. and you lose everything... but you still can get it

back... but you don't know how... and when you lose everything and you realize that there is a court case you didn't even want to be in inbetween you and getting it all back... and you think about what kinda people cause this much harm with because they feel like it..

if you told me id be playing for keeps and with the world the way it is spaced my most important relationships.... torn like this.... ... every day i plan what im going to do ... after this... and every day its just as far away... and im so in the right it kills my soul

Please return an answer asap im scared someones trying to push a dismissal in federal court... ...

Tyler

On Tue, Feb 11, 2025 at 3:09 PM Tyler Lofall <tyleralofall@gmail.com> wrote:

> I'll send a final draft tonight then
> On Tue, Feb 11, 2025 at 11:22 AM Dave Lewis <dlewis@cisoregon.org> wrote:
>
> > Mr. Lofall,
> >
> > I will review your proposed motion and confer with my clients on our position.
> >
> > I can confirm again that WLPD did not have dash cameras or body worn cameras during your March 6, 2022, arrest.
> >
> > As for your federal court removal last May, you filed the Notice of Removal which immediately divested Clackamas County Court of jurisdiction. Federal court then dismissed your removal on its own.
> >
> > **Dave Lewis** | Supervising Litigation Attorney
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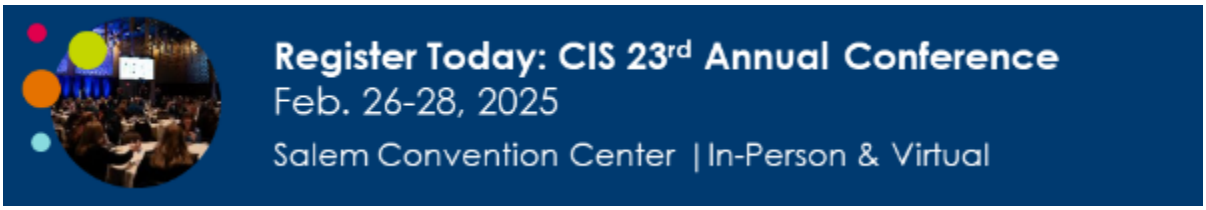
> > 
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> > ---
> >
> > **From:** Tyler Lofall <tyleralofall@gmail.com>
> > **Sent:** Tuesday, February 11, 2025 10:39 AM
> > **To:** Dave Lewis <dlewis@cisoregon.org>
> > **Subject:** Fwd: Lofall v. West Linn, et al. - Removal and Trial Exhibits
> >
> > i figure this might be the easiest to see....
> >
> > ---------- Forwarded message ---------
> > From: **Tyler Lofall** <tyleralofall@gmail.com>
> > Date: Tue, Feb 11, 2025 at 10:14 AM
> > Subject: Re: Lofall v. West Linn, et al. - Removal and Trial Exhibits

To: Dave Lewis <dlewis@cisoregon.org>, Jon Stouffer <jstouffer@cisoregon.org>, Raechelle Ottosen <rottosen@cisoregon.org>

Mr. Lewis,

I guess i need to know your stance before i finish this if i file a motion to dismiss in state court. First i promise you this has been more havoc on my life then yours. Second, If you were not going to finish movifng to federal court why did you let it start?. Third, Final Position, WLPD Did not use cameras prior to the new system in 2023? ... I 100% know the answer . just curious if we are sticking with your previous answer?

Tyler

On Mon, Feb 10, 2025 at 3:46 PM Dave Lewis <dlewis@cisoregon.org> wrote:

> Mr. Lofall,
>
> Your email on Thursday at 11:27 AM said nothing about staying the case or even what you planned to do. Rather, you said, "*Okay thank you, I'll take care of it by tomorrow and send you a copy of what ever I do. If I can insure trial in federal court I'd drop Clackamas County however if they let me keep it on hold and follow through in federal until I know trial is guaranteed… I am going to do that. But I guess federal court is who's gotta make that call…*"
>
> It was not until Friday at 5:03 PM that you informed me via an already drafted "no objection" motion that you were moving to stay the Clackamas County case. My first notice. I object to a stay. The Clackamas County case is much older than your federal case and is ready for trial.
>
> Whether or not you ask for oral argument is your choice. That is not something we have to confer about. I informed you at my first opportunity, early Monday morning, that I object to your motion.
>
> **Dave Lewis** | Supervising Litigation Attorney
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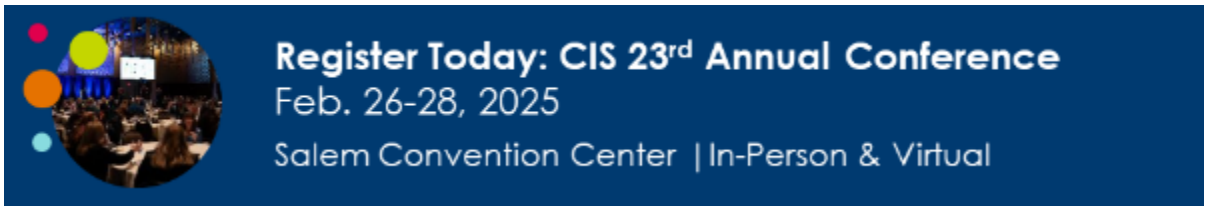
> 
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> ---
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> **From:** Tyler Lofall <tyleralofall@gmail.com>
> **Sent:** Monday, February 10, 2025 3:35 PM
> **To:** Dave Lewis <dlewis@cisoregon.org>
> **Subject:** Re: Lofall v. West Linn, et al. - Removal and Trial Exhibits

That's fine but I sent it to you at 11:27 the day before in response to your "keep you informed" therefore I informed you that same morning (Thursday) no response rest of Thursday, no response Friday, I filed it and 3 days goes by before anything's said… not to mention 10 months went by and clackamas wants trial 2 days after federal court accepts jurisdiction? …what did you expect the first 300 days ? clackamas doesn't have the position to do that.

None the less you want oral argument? I'll file what ever way I need to . I I'll let them know you disagree …. Tonight

On Thu, Feb 6, 2025 at 11:27 AM Tyler Lofall <tyleralofall@gmail.com> wrote:

> Mr. Lewis,
>
> Okay thank you, I'll take care of it by tomorrow and send you a copy of what ever I do. If I can insure trial in federal court I'd drop Clackamas County however if they let me keep it on hold and follow through in federal until I know trial is guaranteed… I am going to do that. But I guess federal court is who's gotta make that call…
>
> Tyler
>
> On Thu, Feb 6, 2025 at 8:20 AM Dave Lewis <dlewis@cisoregon.org> wrote:
>
> > Mr. Lofall,
> >
> > I did get paperwork from the federal court yesterday related to your Second Amended Complaint in the federal lawsuit against Clackamas County. I have not had a chance to fully review that paperwork yet. I also received a notice of trial date yesterday from Clackamas County Circuit Court on your state court lawsuit. Please keep me informed what you intend to do with regard to your Clackamas County lawsuit.
> >
> > **Dave Lewis** | Supervising Litigation Attorney
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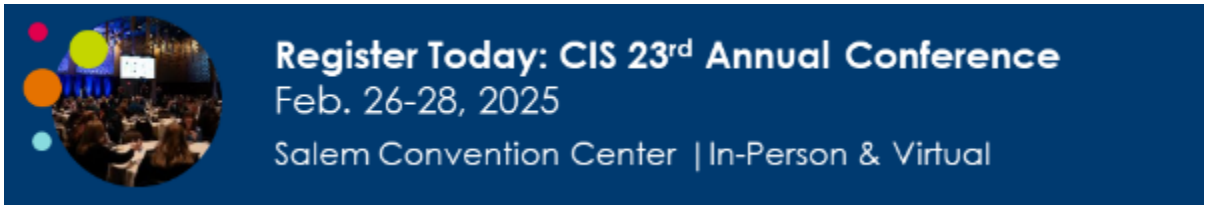
> > 
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> > **From:** Tyler Lofall <tyleralofall@gmail.com>

Sent: Thursday, February 6, 2025 7:23 AM
To: Dave Lewis <dlewis@cisoregon.org>
Subject: Re: Lofall v. West Linn, et al. - Removal and Trial Exhibits

Mr. Lewis

Several days ago the claims I we were waiting for were accepted in federal court. I don't expect you to tell me the answer but I'll be attempting to figure out if I have to dismiss clackamas county or not at this point in time. The federal court has sent you the Complaint and waiver requests to you however I don't recognize the address so I wanted to touch base with you .

Thanks
Tyler Lofall

On Mon, May 20, 2024 at 9:47 AM Dave Lewis <dlewis@cisoregon.org> wrote:

> Mr. Lofall,
>
> A couple of things. It appears that over the weekend you mailed a significant package of materials to the U.S. District Court for the District of Oregon seeking to remove this case from Clackamas County Circuit Court, to stay the Clackamas County Circuit Court trial, to file new lawsuits against the Clackamas County Defendants and the State of Oregon Defendants, and as to assert new claims against the West Linn defendants.
>
> First, I object to the addition of new claims and new parties on the day before we are scheduled to start a trial.
>
> Second, I object to removal to federal court and a stay of our Clackamas County trial on the grounds that you have no legal basis to remove the claims against the West Linn defendants. You represent that removal is based on 28 USC Section 1441(a). However, Section 1441(a) only allows removal "by the defendant or the defendants." You are neither. Furthermore, you represent that you have provided notice to the Clackamas County Circuit Court of this removal, but you have not provided me with any proof of such notice. No where in the hundreds of pages of documents you sent could I find a Notice of Removal served on Clackamas County Circuit Court as required by 28 USC Section 1446(d). Perhaps, I missed it, but please provide me that Notice ASAP. Obviously, we will need to address this removal issue with our Clackamas County trial judge once she or he is assigned this afternoon. Are you available for a call to the court this afternoon, once we know who our assigned judge is? If so, provide me with a telephone number that I may use to include you in the call.
>
> Third, you have not responded to the email from my office of last Friday May 17th attaching my proposed trial exhibits in accordance with Clackamas County Supplemental Local Rule 6.083, and asking whether you will stipulate to their admissibility. Furthermore, you have not provided me with any marked exhibits that you intend to offer at our trial tomorrow, so that I may review and determine whether or not stipulate to their admissibility, again, as required by Clackamas County Supplemental Local Rule 6.083.

Dave Lewis | Supervising Litigation Attorney
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From: Tyler Lofall <tyleralofall@gmail.com>
Sent: Sunday, May 19, 2024 3:56 PM
To: Raechelle Ottosen <rottosen@cisoregon.org>
Cc: Dave Lewis <dlewis@cisoregon.org>; Melanie Webb <MWebb@cisoregon.org>; Jon Stouffer <jstouffer@cisoregon.org>; William Stabler <wstabler@cisoregon.org>
Subject: Re: Lofall v. West Linn, et al. - Defendants' Trial Exhibits

I still believe this will be very difficult to complete without the other accomplishing parties, however it all starts and ends with West Linn Police Officers over stepping their powers. (and the lawyers/prosecutors misconduct on the harassment case)

All of the evidence is from government entities and you have seen it all. Due to being false arrested all of my evidence is going to have come through you, the Jail, the Clackamas County and the Co

was Hoping this would be done by now, yet it hasnt. so here it is, if its not possible to redirect it, i am ready for trial all the same. You are Complaint B. can be found here FEDERAL FILING AND TRIAL

Tyler Lofall

On Fri, May 17, 2024 at 3:20 PM Raechelle Ottosen <rottosen@cisoregon.org> wrote:

> Good afternoon Mr. Lofall,
>
> Pursuant to Clackamas County's Supplemental Local Rule 6.083, below is a link to exhibits that Defendants intend to offer during trial. Please let us know if you are willing to stipulate to any of the exhibits prior to the commencement of the trial. For your reference, SLR 6.083 states:
>
>> "PRETRIAL DISCLOSURE AND STIPULATION TO EXHIBITS All exhibits marked pursuant to UTCR 6.080 must be exchanged with opposing parties before the commencement of trial. Parties shall stipulate to those exhibits to which there are no objections and shall deliver the stipulated exhibits to the clerk. At the commencement of the trial, the judge shall state on the record that the stipulated exhibits have been received into evidence."

Lofall Defendants Trial Exhibits

We will provide you with hard copies of the exhibits at the beginning of the trial on Tuesday morning.

Sincerely,

Raechelle

Raechelle Ottosen | Paralegal
Lewis, Nweze & Stabler | 15875 Boones Ferry Rd #1469 | Lake Oswego, OR 97035
503-763-3854 | 503-763-3900
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Thank you,,
/s/ Tyler A. Lofall
Tyler A. Lofall

(386) 262-3322
tyleralofall@gmail.com

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Thank you,,
/s/ Tyler A. Lofall
Tyler A. Lofall

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tyleralofall@gmail.com

Mr. Lewis,
this may be the easiest way to see it i dont think the how it gets there is the most critical

> .... but i will finish the motion/memo. im going to leave the document without evidence right this moment... but this is what i was going to send. dependinjg on what route you pick i will chaange evifence slightly.

--
Thank you,,
/s/ Tyler A. Lofall
Tyler A. Lofall

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tyleralofall@gmail.com